

KATHRYN N. NESTER (13967)
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SALT LAKE CITY, UT 84102
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Attorney for Tyler James Robinson

**IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH, Plaintiff	)	
	)	
	)	
	)	MOTION AND CONSENT OF
	)	SPONSORING LOCAL
	)	COUNSEL FOR <i>PRO HAC VICE</i>
	)	ADMISSION OF OUT OF
vs.	)	STATE COUNSEL
	)	
	)	Case No. 251403576
TYLER JAMES ROBINSON,	)	
Defendant.	)	Judge Tony F. Graf Jr.
	)	
	)	

Pursuant to Rule 14-806 of the Utah Code of Judicial Administration, Kathryn N. Nester moves the Court for an order admitting Richard G. Novak *pro hac vice* to act as co-counsel in the above-captioned matter.

Mr. Novak, along with Ms. Nester and Mr. Michael Burt, are contracted with the County of Utah to represent Mr. Robinson, having been charged by the State of Utah with aggravated murder. This Court has already determined that Mr. Robinson is indigent and qualifies for the appointment of qualified counsel.

Mr. Novak is neither licensed to practice law in the State of Utah nor a resident of Utah. Mr. Novak is admitted to practice in the State of California where he is an attorney

in good standing as evidenced by the original Certificate of Good Standing and application submitted to the Utah State Bar. As required by Rule 14-806, both a filing fee and Mr. Novak's original Application have been submitted to the Utah State Bar.

Undersigned counsel hereby agrees to serve as designated local counsel for the subject case. She agrees to comply with all applicable provisions of the Utah Rules of Criminal Procedure and the Utah Code of Judicial Administration, and to readily communicate with opposing counsel and the Court regarding the conduct of this case. She also agrees to accept papers when served as well as recognizes the responsibility to act for and on behalf of the clients in all case-related proceedings, including hearings, pretrial conferences, and trials, should Mr. Novak fail to respond to any court order.

A proposed order admitting Mr. Novak accompanies this motion.

DATED this 25th day of September, 2025.

/s/ Kathryn N. Nester

Kathryn N. Nester

CERTIFICATE OF SERVICE

I hereby certify that on the 25th day of September 2025, that I e-filed a true and correct copy of the foregoing Motion and Consent of Sponsoring Local Counsel for Pro Hac Vice admission of Out of State Counsel for the above captioned case, which served all counsel of record.

/s/ Kathryn N. Nester

THE STATE BAR OF CALIFORNIA
CERTIFICATE OF STANDING

ISSUE DATE: 9/20/2025

LICENSEE NAME: Richard Glenn Novak

LICENSEE BAR NUMBER: 149303

LICENSEE STATUS: Active

ADMIT DATE: 12/5/1990

To Whom It May Concern:

This certificate of standing certifies the record above is a true and correct copy of the licensee's current standing with the State Bar of California as of the issue date and that the Discipline and Administrative History listed below is a true and correct copy of the licensee's discipline history and their history of administrative actions.

Discipline and Administrative History:

Date	License Status	Discipline	Administrative Action
1/12/2004	Active		
7/3/2002	Inactive		

Carolina Almarante-Terrero
Carolina Almarante-Terrero
Custodian of Record

PHV Acknowledgement/Receipt Letter

Sep 25 2025

Utah Bar Admissions
645 South 200 East
Salt Lake City, UT 84111
TELEPHONE 801 531-9077



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<http://www.UtahBar.org>

ACKNOWLEDGEMENT OF SUPPORTING DOCUMENTATION AND RECEIPT OF PRO HAC VICE FILING FEE

Date Issued: September 25, 2025

Case Name: State v. Tyler James Robinson

Court Name: In The Fourth Judicial District, Utah County, State of Utah

Case Number: 251403576

This letter serves as an acknowledgement that the \$425.00 pro hac vice filing fee for **Richard Glenn Novak** in the above-referenced case has been paid to the Utah State Bar and that the required supporting documentation is complete and in good order. If you have any questions, please call the Bar at (801) 531-9077.

Maribeth LeHoux
General Counsel

Note to Counsel: An original motion signed by a member of the Utah State Bar who expressly consents to appearing as local counsel should be filed with the court along with: (1) copies of the Application and Certificate of Good Standing which were provided to the Bar; (2) this Acknowledgement of Supporting Documentation and Receipt of Pro Hac Vice Filing Fee; and (3) a proposed order.

*Attorneys admitted Pro Hac Vice must file an "Annual Renewal with the Bar on or before the anniversary date of the filing of the[ir] initial application with the Bar... certify[ing] to the Bar that [they will] continue to act as counsel in the cause or that the cause has been finally adjudicated... And remit to the Bar an annual fee equal to the current dues paid by active members of the Utah State Bar. See Rule 14-806(n). and Rule 14-806(o) for failure to renew.

**For annual renewal information visit: <https://www.utahbar.org/pro-hac-vice/>

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